

9:00 AM

Line 2

24-CIV-04462 SCOTT SULLIVAN VS STATE OF CALIFORNIA; ET AL

SCOTT ALLEN SULLIVAN
STATE OF CALIFORNIA

PRO SE

Order to Show Cause Re: Dismissal

TENTATIVE RULING:

No tentative ruling, plaintiff to appear in person on this OSC re: Dismissal.

9:00 AM

Line 3

24-CIV-08213 JANEEN MARQUARDT, ET AL VS. PHILIP PERA, ET AL

JANEEN MARQUARDT
PHILIP PERA

WILLIAM S. WILSON
ASHLEY E. KLEIN

Defendants' Demurrer to First Amended Complaint

TENTATIVE RULING:

The Demurrer of Defendants Philip Pera and Marlita Pera ("Defendants") to the First Amended Complaint ("FAC") of Plaintiffs Janeen Marquardt and Robert Marquardt ("Plaintiffs") is SUSTAINED WITH LEAVE TO AMEND in part, and OVERRULED in part, as set forth below.

Defendants demur to all eight causes of action based on failure to allege facts sufficient to constitute a cause of action.

Defendants' Memorandum exceeds the permitted page limits.

Defendants filed a 16-page memorandum, which exceeds the page limits allowed under California Rules of Court, rule 3.1113(d) without a court order. Plaintiffs ask the court to only consider the first 15 pages and disregard the remainder. The court exercises its discretion to consider Defendants' entire memorandum this time, but Defendants are CAUTIONED to comply with the page limit in the future or else the court will be inclined to exercise its discretion to disregard it. (See Cal. Rules of Court, rule 3.1113(g) [a memorandum that exceeds the page limits is considered in the same manner as a late-filed paper].)

The court reads the allegations of the original Complaint into the FAC.

Under the sham pleading doctrine, a plaintiff is precluded from amending the complaint to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in a demurrer or summary judgment motion. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425.) The policy against sham pleading requires the plaintiff to explain satisfactorily any such omission. (*Id.* at p. 426.) The purpose of the sham pleading doctrine is to enable the courts to prevent an abuse of process, but it is not intended to prevent an honest plaintiff from correcting erroneous allegations or to prevent the correction of ambiguous facts. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 751.) Where the sham pleading doctrine applies, the court may take judicial notice of the prior pleadings and disregard the inconsistent allegations. (*Deveny, supra*, 139 Cal.App.4th at p. 425, citing *Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 145, 151.)
